



CRM-M-29880-2026

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT
CHANDIGARH**

(101)

CRM-M-29880-2026.
Date of Decision:-03.06.2026.

Satveer Kaur

.....Petitioner

Versus

State of Punjab

.....Respondent

CORAM: HON'BLE MR. JUSTICE ALOK JAIN

Present: Dr. Anmol Rattan Sidhu, Senior Advocate (through VC)
with Mr. Manminder Jit Singh, Advocate for the petitioner.

Mr. Japjot Singh, AAG, Punjab.

Mr. Lokesh Garg and Mr. Kushagra Mahajan,
Advocates for the complainant.

ALOK JAIN, J. (Oral)

1. The present petition has been filed seeking grant of anticipatory bail to the petitioner in FIR No.02 dated 25.01.2026 under Sections 7-A of the Prevention of Corruption Act, 1988 as amended by Prevention of Corruption (Amendment) Act, 2018, registered at Police Station Vigilance Bureau Bathinda, District Bathinda (Annexure P-1).

2. Learned State counsel has filed short reply by way of an affidavit of Sh. Sandeep Singh PPS, Deputy Superintendent of Police, Vigilance Bureau Unit Bathinda, on behalf of the respondent-State of Punjab along with relevant Annexures. The same is taken on record.



CRM-M-29880-2026

3. Learned Senior counsel for the petitioner submits that the FIR has been lodged at an extremely belated stage as the allegations pertain to the occurrence way back in the year 2023.

4. *Per contra*, learned State counsel submits that the complaint Nos.426 of 2023 and 27 of 2024 were filed well within time wherein there are specific allegations against the petitioner that she had played a pivotal role in the commission of the said offence. In addition, it is submitted that there is specific conversation record between the petitioner and the complainant and the complainant's mother, which demonstrates the active role of the petitioner in the commission of offence whereby the ingredients of Section 7-A of the Prevention of Corruption (Amendment) Act, 2018 are made out.

5. Heard the learned counsel for the parties.

6. In **CBI Vs. Anil Sharma (1997) 7 SCC 187**, the Hon'ble Supreme Court of India has held that custodial interrogation is qualitatively more elicitation oriented than questioning a suspect who is on anticipatory bail. The relevant para of the said judgment reads as under:-

“We find force in the submission of the CBI that custodial interrogation is qualitatively more elicitation orientated than questioning a suspect who is well ensconced with a favourable order under Section 438 of the Code. In a case like this effective interrogation of suspected person is of tremendous advantage in disinterring many useful informations and also materials which would have been concealed. Success in such interrogation would elude if the suspected person knows



CRM-M-29880-2026

that he is well protected and insulated by a pre-arrest bail order during the time he is interrogated. Very often interrogation in such a condition would reduce to a mere ritual. The argument that the custodial interrogation is fraught with the danger of the person being subjected to third degree methods need not be countenanced, for, such an argument can be advanced by all accused in all criminal cases. The Court has to presume that responsible Police Officers would conduct themselves in a responsible manner and that those entrusted with the task of disinterring would not conduct themselves as offenders.

7. In view of the above, coupled with the fact that serious allegations have been levelled against the petitioner and the custodial interrogation of the petitioner would be of much more importance to unearth the truth, the present petition is dismissed.

(ALOK JAIN)
JUDGE

June 03, 2026.

S. Sethi

Whether speaking/reasoned:- Yes/No

Whether Reportable:- Yes/No